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No. 19–6347. *ALVARADO v. LAWRENCE, WARDEN*. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2018 IL App (5th) 170278–U.

No. 19–6348. *GRIFFIN v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 329.

No. 19–6352. *COON v. NOOTH, SUPERINTENDENT, SNAKE RIVER CORRECTIONAL INSTITUTION*. C. A. 9th Cir. Certiorari denied.

No. 19–6356. *LAROCK v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 794.

No. 19–6357. *TURNER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 856.

No. 19–6360. *PUGH v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 273 So. 3d 941.

No. 19–6362. *NUNEZ v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 201 A. 3d 879.

No. 19–6368. *KALINOWSKI v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2018 IL App (4th) 170823–U.

No. 19–6373. *PEPPIN v. WASHINGTON*. Ct. App. Wash. Certiorari denied. Reported below: 4 Wash. App. 2d 1066.

No. 19–6375. *GIAM NGUYEN ET AL. v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 921 F. 3d 452.

No. 19–6376. *SOLIS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 202.

No. 19–6377. *GASKIN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 434.

No. 19–6378. *GENTILE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 559.

No. 19–6393. *GAMARRA v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. Reported below: 940 F. 3d 1315.

No. 19–6402. *VILLARREAL SILVA v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 931 F. 3d 330.

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No. 19–6414. VEGA-TORRES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 356.

No. 19–6419. WILSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 715.

No. 19–6455. NEDD *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 281.

No. 17–8830. PAUL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 718 Fed. Appx. 360.

Statement of JUSTICE KAVANAUGH respecting the denial of certiorari.

I agree with the denial of certiorari because this case ultimately raises the same statutory interpretation issue that the Court resolved last Term in *Gundy v. United States*, 588 U.S. 128 (2019). I write separately because JUSTICE GORSUCH’s scholarly analysis of the Constitution’s nondelegation doctrine in his *Gundy* dissent may warrant further consideration in future cases. JUSTICE GORSUCH’s opinion built on views expressed by then-Justice Rehnquist some 40 years ago in *Industrial Union Dept., AFL–CIO v. American Petroleum Institute*, 448 U.S. 607, 685–686 (1980) (Rehnquist, J., concurring in judgment). In that case, Justice Rehnquist opined that major national policy decisions must be made by Congress and the President in the legislative process, not delegated by Congress to the Executive Branch.

In the wake of Justice Rehnquist’s opinion, the Court has not adopted a nondelegation principle for major questions. But the Court has applied a closely related statutory interpretation doctrine: In order for an executive or independent agency to exercise regulatory authority over a major policy question of great economic and political importance, Congress must either: (i) expressly and specifically decide the major policy question itself and delegate to the agency the authority to regulate and enforce; or (ii) expressly and specifically delegate to the agency the authority both to decide the major policy question and to regulate and enforce. See, e.g., *Utility Air Regulatory Group v. EPA*, 573 U.S. 302 (2014); *FDA v. Brown & Williamson Tobacco Corp.*, 529 U.S. 120 (2000); *MCI Telecommunications Corp. v. American Telephone & Telegraph Co.*, 512 U.S. 218 (1994); Breyer, Judicial

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Review of Questions of Law and Policy, 38 Admin. L. Rev. 363, 370 (1986).

The opinions of Justice Rehnquist and JUSTICE GORSUCH would not allow that second category—congressional delegations to agencies of authority to decide major policy questions—even if Congress expressly and specifically delegates that authority. Under their approach, Congress could delegate to agencies the authority to decide less-major or fill-up-the-details decisions.

Like Justice Rehnquist’s opinion 40 years ago, JUSTICE GORSUCH’s thoughtful *Gundy* opinion raised important points that may warrant further consideration in future cases.

No. 18–1451. NATIONAL REVIEW, INC. *v.* MANN; and

No. 18–1477. COMPETITIVE ENTERPRISE INSTITUTE ET AL. *v.* MANN. Ct. App. D. C. Motions of Southeastern Legal Foundation for leave to file briefs as *amicus curiae* granted. Certiorari denied.

JUSTICE ALITO, dissenting.

The petition in this case presents questions that go to the very heart of the constitutional guarantee of freedom of speech and freedom of the press: the protection afforded to journalists and others who use harsh language in criticizing opposing advocacy on one of the most important public issues of the day. If the Court is serious about protecting freedom of expression, we should grant review.

I

Penn State professor Michael Mann is internationally known for his academic work and advocacy on the contentious subject of climate change. As part of this work, Mann and two colleagues produced what has been dubbed the “hockey stick” graph, which depicts a slight dip in temperatures between the years 1050 and 1900, followed by a sharp rise in temperature over the last century. Because thermometer readings for most of this period are not available, Mann attempted to ascertain temperatures for the earlier years based on other data such as growth rings of ancient trees and corals, ice cores from glaciers, and cave sediment cores. The hockey stick graph has been prominently cited as proof that human activity has led to global warming. Particularly after emails from the University of East Anglia’s Climate Research Unit were made public, the quality of Mann’s work was called into question in some quarters.

Columnists Rand Simberg and Mark Steyn criticized Mann, the hockey stick graph, and an investigation conducted by Penn State into allegations of wrongdoing by Mann. Simberg's and Steyn's comments, which appeared in blogs hosted by the Competitive Enterprise Institute and National Review Online, employed pungent language, accusing Mann of, among other things, "misconduct," "wrongdoing," and the "manipulation" and "tortur[e]" of data. App. to Pet. for Cert. in No. 18–1451, pp. 94a, 98a (App.).

Mann responded by filing a defamation suit in the District of Columbia's Superior Court. Petitioners moved for dismissal, relying in part on the District's anti-SLAPP statute, D.C. Code § 16–5502(b) (2012), which requires dismissal of a defamation claim if it is based on speech made "in furtherance of the right of advocacy on issues of public interest" and the plaintiff cannot show that the claim is likely to succeed on the merits. The Superior Court denied the motion, and the D.C. Court of Appeals affirmed. 150 A. 3d 1213, 1247, 1249 (2016). The petition now before us presents two questions: (1) whether a court or jury must determine if a factual connotation is "provably false" and (2) whether the First Amendment permits defamation liability for expressing a subjective opinion about a matter of scientific or political controversy. Both questions merit our review.

II

The first question is important and has divided the lower courts. See 1 R. Smolla, *Law of Defamation* §§ 6.61, 6.62, 6.63 (2d ed. 2019); 1 R. Sack, *Defamation* § 4:3.7 (5th ed. 2019). Federal courts have held that "[w]hether a communication is actionable because it contained a provably false statement of fact is a question of law." *Chambers v. Travelers Cos.*, 668 F. 3d 559, 564 (CA8 2012); see also, e.g., *Madison v. Frazier*, 539 F. 3d 646, 654 (CA7 2008); *Gray v. St. Martin's Press, Inc.*, 221 F. 3d 243, 248 (CA1 2000); *Moldea v. New York Times Co.*, 15 F. 3d 1137, 1142 (CA DC 1994). Some state courts, on the other hand, have held that "it is for the jury to determine whether an ordinary reader would have understood [expression] as a factual assertion." *Good Govt. Group of Seal Beach, Inc. v. Superior Ct. of Los Angeles Cty.*, 22 Cal. 3d 672, 682, 586 P. 2d 572, 576 (1978); see also, e.g., *Aldoupolis v. Globe Newspaper Co.*, 398 Mass. 731, 734, 500 N. E. 2d 794, 797 (2014); *Caron v. Bangor Publishing Co.*, 470 A. 2d 782, 784 (Me. 1984). In this case, it appears that the D.C. Court

of Appeals has joined the latter camp, leaving it for a jury to decide whether it can be proved as a matter of fact that Mann improperly treated the data in question. See App. 29a, 52a–53a, 65a, n. 46.

Respondent does not deny the existence of a conflict in the decisions of the lower courts. See Brief in Opposition 30. Nor does he dispute the importance of the question. Instead, he argues that the D. C. Court of Appeals followed the federal rule,* but the D. C. Court of Appeals’ opinion repeatedly stated otherwise. See App. 29a (asking what “a jury properly instructed on the applicable legal and constitutional standards could reasonably find”); *id.*, at 52a–53a (repeatedly describing what a jury “could find”); *id.*, at 65a, n. 46 (stating that in a case like this one, involving what it characterized as a claim of “‘ordinary libel,’” “the standard is ‘whether a reasonable jury *could find* that the challenged statements were false’” (emphasis in original)). This last statement is especially revealing because it appears in a footnote that was revised in response to petitioners’ petition for rehearing, see *id.*, at 1a, n. *, which disputed the correctness of the standard that asks what a jury *could* find, see *id.*, at 65a, n. 46. We therefore have before us a decision on an indisputably important question of constitutional law on which there is an acknowledged split in the decisions of the lower courts. A question of this nature deserves a place on our docket.

This question—whether the courts or juries should decide whether an allegedly defamatory statement can be shown to be untrue—is delicate and sensitive and has serious implications for the right to freedom of expression. And two factors make the question especially important in the present case.

First, the question that the jury will apparently be asked to decide—whether petitioners’ assertions about Mann’s use of scientific data can be shown to be factually false—is highly technical. Whether an academic’s use and presentation of data falls within the range deemed reasonable by those in the field is not an easy matter for lay jurors to assess.

*Respondent’s lead argument in opposition to certiorari is that we lack jurisdiction under 28 U. S. C. § 1257, see Brief in Opposition 27–30, but petitioners have a strong argument that we have jurisdiction under *Cox Broadcasting Corp. v. Cohn*, 420 U. S. 469 (1975). If the Court has doubts on this score, the question of jurisdiction can be considered together with the merits.

Second, the controversial nature of the whole subject of climate change exacerbates the risk that the jurors' determination will be colored by their preconceptions on the matter. When allegedly defamatory speech concerns a political or social issue that arouses intense feelings, selecting an impartial jury presents special difficulties. And when, as is often the case, allegedly defamatory speech is disseminated nationally, a plaintiff may be able to bring suit in whichever jurisdiction seems likely to have the highest percentage of jurors who are sympathetic to the plaintiff's point of view. See *Keeton v. Hustler Magazine, Inc.*, 465 U.S. 770, 781 (1984) (regular circulation of magazines in forum State sufficient to support jurisdiction in defamation action). For these reasons, the first question presented in the petition calls out for review.

III

The second question may be even more important. The constitutional guarantee of freedom of expression serves many purposes, but its most important role is protection of robust and uninhibited debate on important political and social issues. See *Snyder v. Phelps*, 562 U.S. 443, 451–452 (2011); *New York Times Co. v. Sullivan*, 376 U.S. 254, 270 (1964). If citizens cannot speak freely and without fear about the most important issues of the day, real self-government is not possible. See *Garrison v. Louisiana*, 379 U.S. 64, 74–75 (1964) (“[S]peech concerning public affairs is more than self-expression; it is the essence of self-government”). To ensure that our democracy is preserved and is permitted to flourish, this Court must closely scrutinize any restrictions on the statements that can be made on important public policy issues. Otherwise, such restrictions can easily be used to silence the expression of unpopular views.

At issue in this case is the line between, on the one hand, a pungently phrased expression of opinion regarding one of the most hotly debated issues of the day and, on the other, a statement that is worded as an expression of opinion but actually asserts a fact that can be proven in court to be false. *Milkovich v. Lorain Journal Co.*, 497 U.S. 1 (1990). Under *Milkovich*, statements in the first category are protected by the First Amendment, but those in the latter are not. *Id.*, at 19–20, 22. And *Milkovich* provided examples of statements that fall into each category. As explained by the Court, a defamation claim could be asserted based on the statement: “In my opinion John Jones

is a liar.” *Id.*, at 18. This statement, the Court noted, implied knowledge that Jones had made particular factual statements that could be shown to be false. *Ibid.* As for a statement that could not provide the basis for a valid defamation claim, the Court gave this example: “In my opinion Mayor Jones shows his abysmal ignorance by accepting the teachings of Marx and Lenin.” *Id.*, at 20.

When an allegedly defamatory statement is couched as an expression of opinion on the quality of a work of scholarship relating to an issue of public concern, on which side of the *Milkovich* line does it fall? This is a very important question that would greatly benefit from clarification by this Court. Although *Milkovich* asserted that its hypothetical statement about the teachings of Marx and Lenin would not be actionable, it did not explain precisely why this was so. Was it the lack of specificity or the nature of statements about economic theories or all scholarly theories or perhaps something else?

In recent years, the Court has made a point of vigilantly enforcing the Free Speech Clause even when the speech at issue made no great contribution to public debate. For example, last Term, in *Iancu v. Brunetti*, 588 U.S. 388 (2019), we upheld the right of a manufacturer of jeans to register the trademark “F-U-C-K.” Two years before, in *Matal v. Tam*, 582 U.S. 218 (2017), we held that a rock group called “The Slants” had the right to register its name.

In earlier cases, the Court went even further. In *United States v. Alvarez*, 567 U.S. 709 (2012), the Court held that the First Amendment protected a man’s false claim that he had won the Congressional Medal of Honor. In *Snyder*, the successful party had viciously denigrated a deceased soldier outside a church during his funeral. 562 U.S., at 448–449. In *United States v. Stevens*, 559 U.S. 460, 466 (2010), the First Amendment claimant had sold videos of dog fights.

If the speech in all these cases had been held to be unprotected, our Nation’s system of self-government would not have been seriously threatened. But as I noted in *Brunetti*, 588 U.S., at 399 (concurring opinion), the protection of even speech as trivial as a naughty trademark for jeans can serve an important purpose: It can demonstrate that this Court is deadly serious about protecting freedom of speech. Our decisions protecting the

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speech at issue in that case and the others just noted can serve as a promise that we will be vigilant when the freedom of speech and the press are most seriously implicated, that is, in cases involving disfavored speech on important political or social issues.

This is just such a case. Climate change has staked a place at the very center of this Nation's public discourse. Politicians, journalists, academics, and ordinary Americans discuss and debate various aspects of climate change daily—its causes, extent, urgency, consequences, and the appropriate policies for addressing it. The core purpose of the constitutional protection of freedom of expression is to ensure that all opinions on such issues have a chance to be heard and considered.

I do not suggest that speech that touches on an important and controversial issue is always immune from challenge under state defamation law, and I express no opinion on whether the speech at issue in this case is or is not entitled to First Amendment protection. But the standard to be applied in a case like this is immensely important. Political debate frequently involves claims and counterclaims about the validity of academic studies, and today it is something of an understatement to say that our public discourse is often “uninhibited, robust, and wide-open.” *New York Times Co.*, 376 U. S., at 270.

I recognize that the decision now before us is interlocutory and that the case may be reviewed later if the ultimate outcome below is adverse to petitioners. But requiring a free speech claimant to undergo a trial after a ruling that may be constitutionally flawed is no small burden. See *Cox Broadcasting Corp. v. Cohn*, 420 U. S. 469, 485 (1975) (observing that “there should be no trial at all” if the statute at issue offended the First Amendment). A journalist who prevails after trial in a defamation case will still have been required to shoulder all the burdens of difficult litigation and may be faced with hefty attorney's fees. Those prospects may deter the uninhibited expression of views that would contribute to healthy public debate.

For these reasons, I would grant the petition in this case, and I respectfully dissent from the denial of certiorari.

No. 18–9517. *ISOM v. ARKANSAS*. Sup. Ct. Ark. Certiorari denied. Reported below: 2018 Ark. 368, 563 S. W. 3d 533.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

Petitioner Kenneth Isom was thrice charged with burglary and theft offenses by Drew County, Arkansas, prosecutor Sam Pope. Isom was acquitted on two of those occasions, but was convicted on the third. After Isom was granted parole three years into his sentence, Prosecutor Pope met with the Office of the Governor to express his concern and to inquire whether Isom could somehow be returned to prison, but to no avail.

Seven years later, a jury convicted Isom of capital murder in a case presided over by Pope himself—now a Drew County judge. Isom sought postconviction relief, which was denied, also by Judge Pope. The Arkansas Supreme Court later granted Isom leave to file a writ of *coram nobis* to challenge the State’s suppression of critical evidence under *Brady v. Maryland*, 373 U.S. 83 (1963). That suppressed evidence pertained to, among other things, a suggestive photo identification and the inconsistent testimony of a state witness.

Again, Judge Pope presided. Isom filed a recusal motion, alleging that Pope’s prior efforts to prosecute Isom (and to rescind his parole) created, at the very least, an appearance of bias requiring recusal under the Due Process Clause. Judge Pope denied the motion. After crediting testimony that supported his original photo-identification ruling, and after limiting discovery relevant to the inconsistent-testimony issue, Judge Pope also denied *coram nobis* relief.

The Arkansas Supreme Court affirmed. 2018 Ark. 368, 563 S. W. 3d 533. Justices Hart and Wood dissented, concluding that there was at least an appearance of bias that required recusal. Justice Hart reasoned that the unusual *coram nobis* posture presented an especially compelling case for recusal, because Judge Pope was in the “untenable position” of evaluating his own prior findings about whether the photo identification should have been suppressed. *Id.*, at 550. Justice Hart also considered it significant that, after a state witness appeared to become confused during cross-examination, Judge Pope rehabilitated the witness and ordered a recess, after which the witness testified that his prior statements were mistaken. *Id.*, at 551. Justice Wood, in turn, found it difficult to afford Judge Pope the usual deference extended to the close, discretionary decisions of circuit court judges, given his “extensive history” with Isom. *Id.*, at 552.

Our precedents require recusal where the “‘probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable.’” *Rippo v. Baker*, 580 U.S. 285, 287 (2017) (*per curiam*) (quoting *Withrow v. Larkin*, 421 U.S. 35, 47 (1975)). The operative inquiry is objective: whether, “considering all the circumstances alleged,” *Rippo*, 580 U.S., at 287, “the average judge in [the same] position is likely to be neutral, or whether there is an unconstitutional potential for bias,” *Williams v. Pennsylvania*, 579 U.S. 1, 8 (2016) (internal quotation marks omitted). This Court has “not set forth a specific test” or required recusal as a matter of course when a judge has had prior involvement with a defendant in his role as a prosecutor. Cf. *ibid.* Nor has it found that “opinions formed by the judge on the basis of facts introduced or events occurring in the course of . . . prior proceedings” constitute a basis for recusal in the ordinary case. *Liteky v. United States*, 510 U.S. 540, 555 (1994). Indeed, “it may be necessary and prudent to permit judges to preside over successive causes involving the same parties or issues.” *Id.*, at 562 (Kennedy, J., concurring).

At the same time, the Court has acknowledged that “[a]llowing a decisionmaker to review and evaluate his own prior decisions raises problems,” *Withrow*, 421 U.S., at 58, n. 25, perhaps because of the risk that a judge might “‘be so psychologically wedded’ to his or her previous position” that he or she will “‘consciously or unconsciously avoid the appearance of having erred or changed position.’” *Williams*, 579 U.S., at 9 (quoting *Withrow*, 421 U.S., at 57). And it has warned that a judge’s “personal knowledge and impression” of a case may sometimes outweigh the parties’ arguments. *In re Murchison*, 349 U.S. 133, 138 (1955).

The allegations of bias presented to the Arkansas Supreme Court are concerning. But they are complicated by the fact that Isom did not raise the issue of Judge Pope’s prior involvement in his prosecutions, either at his capital trial or for nearly 15 years thereafter during his postconviction proceedings. Although the Arkansas Supreme Court did not base its recusal decision on this point, it is a consideration in evaluating whether there was an “unconstitutional potential for bias” in this case sufficient to warrant the grant of certiorari. *Williams*, 579 U.S., at 8 (internal quotation marks omitted). I therefore do not dissent from the denial of certiorari. I write, however, to encourage vigilance about the risk of bias that may arise when trial judges peculiarly

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familiar with a party sit in judgment of themselves. The Due Process Clause's guarantee of a neutral decisionmaker will mean little if this form of partiality is overlooked or underestimated.

No. 19–234. *LIBERTARIAN NATIONAL COMMITTEE INC. v. FEDERAL ELECTION COMMISSION*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 924 F. 3d 533.

No. 19–418. *BROOKENS v. PIZZELLA, ACTING SECRETARY OF LABOR*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

Rehearing Denied

No. 18–1374. *JAYE v. OAK KNOLL VILLAGE CONDOMINIUM OWNERS ASSN., INC., ET AL.*, 589 U. S. 918;

No. 18–1407. *BARROW v. WILLIS ET AL.*, 589 U. S. 919;

No. 18–1427. *LAVENTURE ET AL. v. UNITED NATIONS ET AL.*, 589 U. S. 920;

No. 18–1444. *SOTO NIEVES ET AL. v. DEPARTMENT OF THE FAMILY OF THE COMMONWEALTH OF PUERTO RICO ET AL.*, 589 U. S. 921;

No. 18–1473. *RIVAS v. NEW YORK STATE LOTTERY*, 589 U. S. 922;

No. 18–1499. *KAUSHAL v. INDIANA*, 589 U. S. 924;

No. 18–8191. *BURKE, MOTHER OF CAUDLE, DECEASED v. RAVEN ELECTRIC, INC., ET AL.*, 589 U. S. 929;

No. 18–8930. *GURVEY v. COWAN, LIEBOWITZ & LATMAN, P. C., ET AL.*, 589 U. S. 931;

No. 18–9009. *ADELMAN v. ROOT ET AL.*, 589 U. S. 932;

No. 18–9115. *ARUNACHALAM v. PAZUNIAK LAW OFFICE, LLC, ET AL.*, 589 U. S. 935;

No. 18–9138. *GULLETT-EL v. CORRIGAN ET AL.*, 589 U. S. 935;

No. 18–9346. *ARUNACHALAM v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA ET AL.*, 589 U. S. 942;

No. 18–9355. *ROBINSON v. RENTAL MAINTENANCE, INC.*, 589 U. S. 943;

No. 18–9369. *WEBB v. COUNTY OF PIMA, ARIZONA, ET AL.*, 589 U. S. 943;

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No. 18–9386. ARUNACHALAM *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA ET AL., 589 U. S. 944;

No. 18–9480. ROBERTS *v.* INSERVCO INSURANCE SERVICES, 589 U. S. 948;

No. 18–9660. WINDSOR *v.* DELAWARE, 589 U. S. 958;

No. 19–26. COLLINS ET AL. *v.* DANIELS ET AL., 589 U. S. 969;

No. 19–31. KAM *v.* DALLAS COUNTY, TEXAS, ET AL., 589 U. S. 969;

No. 19–132. FEJOKWU *v.* COMMODITY FUTURES TRADING COMMISSION, 589 U. S. 974;

No. 19–133. SAGAR *v.* MNUCHIN, SECRETARY OF THE TREASURY, 589 U. S. 974;

No. 19–172. HARSAY *v.* UNIVERSITY OF KANSAS, 589 U. S. 975;

No. 19–5033. ARUNACHALAM *v.* INTERNATIONAL BUSINESS MACHINES CORP. ET AL., 589 U. S. 979;

No. 19–5065. CRANK *v.* BRACY, WARDEN, 589 U. S. 980;

No. 19–5151. MAEHR *v.* UNITED STATES, 589 U. S. 985;

No. 19–5173. KIRKLAND *v.* HUNTINGTON INGALLS, INC., 589 U. S. 987;

No. 19–5252. WRIGHT *v.* WEST VIRGINIA, 589 U. S. 990; and

No. 19–5562. KOUYATE *v.* UNITED STATES CUSTOMS AND BORDER PROTECTION, 589 U. S. 1002. Petitions for rehearing denied.

No. 17–6086. GUNDY *v.* UNITED STATES, 588 U. S. 128. Petition for rehearing denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition.

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Miscellaneous Order

No. 19–6860 (19A626). IN RE HALL. Application for stay of execution of sentence of death, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied. Petition for writ of habeas corpus denied.

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Miscellaneous Order

No. 19A615. BARR, ATTORNEY GENERAL, ET AL. *v.* ROANE ET AL. C. A. D. C. CIR. Application for stay or vacatur, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied.

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We expect that the Court of Appeals for the District of Columbia Circuit will render its decision with appropriate dispatch.

Statement of JUSTICE ALITO, with whom JUSTICE GORSUCH and JUSTICE KAVANAUGH join, respecting the denial of stay or vacatur.

The District Court for the District of Columbia has preliminarily enjoined the Federal Government from carrying out the execution of four prisoners who were convicted in federal court more than 15 years ago for exceptionally heinous murders. In this action, none of the four is contesting his guilt or his sentence, but the District Court enjoined the Bureau of Prisons (BOP) from carrying out these executions based on its interpretation of a statute, 18 U. S. C. § 3596(a), directing that federal executions be implemented “in the manner prescribed by the law of the State in which the sentence is imposed.” This means, the Government contends, that the mode of execution (*i.e.*, by lethal injection, electrocution, etc.) must be the same as that called for under the law of the State in question, but the District Court held instead that a federal execution must follow all the procedures that would be used in an execution in that State—down to the selection of the way a catheter is inserted.

The Government has shown that it is very likely to prevail when this question is ultimately decided. The centerpiece of the District Court’s reasoning was that Congress referred to the “manner” and not the “method” of execution, but there is strong evidence that this reading is not supported either by the ordinary meaning of these two terms or by the use of the term “manner” in prior federal death penalty statutes. Moreover, the District Court’s interpretation would lead to results that Congress is unlikely to have intended. It would require the BOP to follow procedures that have been attacked as less safe than the ones the BOP has devised (after extensive study); it would demand that the BOP pointlessly copy minor details of a State’s protocol; and it could well make it impossible to carry out executions of prisoners sentenced in some States.

Vacating the stay issued by the District Court for the District of Columbia would not necessarily mean that the prisoners in question would be executed before the merits of their Administrative Procedure Act claim is adjudicated. They remain free to seek review on other grounds. Nevertheless, in light of what is

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at stake, it would be preferable for the District Court's decision to be reviewed on the merits by the Court of Appeals for the District of Columbia Circuit before the executions are carried out.

The Court has expressed the hope that the Court of Appeals will proceed with "appropriate dispatch," and I see no reason why the Court of Appeals should not be able to decide this case, one way or the other, within the next 60 days. The question, though important, is straightforward and has already been very ably briefed in considerable detail by both the Solicitor General and by the prisoners' 17-attorney legal team. For these reasons, I would state expressly in the order issued today that the denial of the application to vacate is without prejudice to the filing of a renewed application if the injunction is still in place 60 days from now.

Certiorari Granted

No. 19–309. CARNEY, GOVERNOR OF DELAWARE *v.* ADAMS. C. A. 3d Cir. Certiorari granted. In addition to the questions presented by the petition, the parties are directed to brief and argue the following question: "Whether respondent has demonstrated Article III standing." Reported below: 922 F. 3d 166.

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Certiorari Granted—Vacated and Remanded

No. 19–5804. LEWIS *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States v. Davis*, 588 U. S. 445 (2019). Reported below: 762 Fed. Appx. 786.

No. 19–5852. COOPER *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 777 Fed. Appx. 371.

Certiorari Dismissed

No. 19–6158. WHITE *v.* SLOOP ET AL. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 772 Fed. Appx. 334.

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Miscellaneous Orders

No. 19A21. *GEIMAH v. BARR, ATTORNEY GENERAL*. Application for stay, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. D-3051. *IN RE DISBARMENT OF LANG*. Disbarment entered. [For earlier order herein, see 588 U. S. 934.]

No. 19M71. *MCINTOSH v. KIRBY, WARDEN, ET AL.* Motion to direct the Clerk to file petition for writ of certiorari out of time denied. JUSTICE ALITO took no part in the consideration or decision of this motion.

No. 19M72. *SHARBUTT v. VASQUEZ, WARDEN*;

No. 19M73. *CARSWELL ET AL. v. E. PIHL & SON ET AL.*; and

No. 19M74. *JOHNSON v. COURT OF CLAIMS OF ILLINOIS*. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 19M75. *WHITE v. UNITED STATES*. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 19M76. *UPSHAW v. UNITED STATES*. Motion for leave to proceed as a veteran denied.

No. 151, Orig. *ARIZONA v. SACKLER ET AL.* Motion for leave to file bill of complaint denied.

No. 17-1268. *OPATI, IN HER OWN RIGHT, AND AS EXECUTRIX OF THE ESTATE OF OPATI, DECEASED, ET AL. v. REPUBLIC OF SUDAN ET AL.* C. A. D. C. Cir. [Certiorari granted, 588 U. S. 919.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion.

No. 17-1712. *THOLE ET AL. v. U. S. BANK N. A. ET AL.* C. A. 8th Cir. [Certiorari granted, 588 U. S. 919.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18-1048. *GE ENERGY POWER CONVERSION FRANCE SAS, CORP., FKA CONVERTEAM SAS v. OUTOKUMPU STAINLESS USA, LLC, ET AL.* C. A. 11th Cir. [Certiorari granted, 588 U. S. 918.]

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Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–1195. ESPINOZA ET AL. *v.* MONTANA DEPARTMENT OF REVENUE ET AL. Sup. Ct. Mont. [Certiorari granted, 588 U. S. 920.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–9412. RASHID *v.* UNITED STATES. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 904] denied. JUSTICE ALITO took no part in the consideration or decision of this motion.

No. 18–9706. PETERS *v.* ILLINOIS. Sup. Ct. Ill. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 905] denied.

No. 19–7. SEILA LAW LLC *v.* CONSUMER FINANCIAL PROTECTION BUREAU. C. A. 9th Cir. [Certiorari granted, 589 U. S. 1031.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–277. HSBC HOLDINGS PLC ET AL. *v.* PICARD ET AL. C. A. 2d Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 19–5632. T. A. ET AL. *v.* LEFF ET AL.; and KRAMER ET AL. *v.* DANE ET AL. C. A. 2d Cir. Motion of petitioners for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 1032] denied.

No. 19–6172. RAJAPAKSE *v.* CREDIT ACCEPTANCE CORP. ET AL. C. A. 6th Cir.;

No. 19–6191. K. N. ET UX. *v.* MONTANA DEPARTMENT OF PUBLIC HEALTH AND HUMAN SERVICES. Sup. Ct. Mont.;

No. 19–6198. RUBANG *v.* UNITED AIRLINES, INC., ET AL. C. A. 9th Cir.; and

No. 19–6214. FUQUEN *v.* EVERITT. Ct. Sp. App. Md. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until December 30, 2019, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

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No. 19–6591. IN RE UNCAPHER; and
No. 19–6645. IN RE ARMSTRONG. Petitions for writs of habeas corpus denied.

No. 19–359. IN RE LAW OFFICES OF NINA RINGGOLD ET AL.;
No. 19–410. IN RE FIELDS;
No. 19–481. IN RE LUSSY;
No. 19–5721. IN RE SCHAFER; and
No. 19–6112. IN RE POUNCY. Petitions for writs of mandamus denied.

Certiorari Denied

No. 18–1519. CORREA *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 908 F. 3d 208.

No. 18–1538. CHERK ET AL. *v.* MARIN COUNTY, CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 1. Certiorari denied.

No. 18–1552. ALFANO ET AL. *v.* UNITED STATES; and
No. 18–1581. LOWRY ET AL. *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 913 F. 3d 332.

No. 18–1572. PRISET *v.* PENNSYLVANIA. C. A. 3d Cir. Certiorari denied.

No. 18–1586. GIBSON, AKA LYNN *v.* COLLIER ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 920 F. 3d 212.

No. 18–9263. FELIPE VALENCIA *v.* UNITED STATES; and
No. 18–9328. PORTOCARRERO VALENCIA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 915 F. 3d 717.

No. 19–4. JACKSON NATIONAL LIFE INSURANCE CO. *v.* LINDENBURG, INDIVIDUALLY AND AS NATURAL GUARDIAN OF HER MINOR CHILDREN ZTL ET AL.; and

No. 19–13. TENNESSEE *v.* LINDENBURG, INDIVIDUALLY AND AS NATURAL GUARDIAN OF HER MINOR CHILDREN ZTL ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 912 F. 3d 348.

No. 19–47. MORGAN *v.* SCHOTT ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 914 F. 3d 1115.

No. 19–109. MONTIJO-DOMINGUEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 870.

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No. 19–152. *AMARIN PHARMA, INC., ET AL. v. INTERNATIONAL TRADE COMMISSION ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 923 F. 3d 959.

No. 19–158. *TURNER ET AL. v. HINES ET AL.* Ct. App. D. C. Certiorari denied. Reported below: 201 A. 3d 578.

No. 19–159. *TAPIA v. NEW YORK.* Ct. App. N. Y. Certiorari denied. Reported below: 33 N. Y. 3d 257, 124 N. E. 3d 210.

No. 19–248. *JAMMAL ET AL. v. AMERICAN FAMILY INSURANCE CO. ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 914 F. 3d 449.

No. 19–263. *ROSS v. ROCHELL.* C. A. 8th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 588.

No. 19–276. *LUIS GARZA ET AL. v. CITY OF DONNA, TEXAS.* C. A. 5th Cir. Certiorari denied. Reported below: 922 F. 3d 626.

No. 19–283. *CITY OF TRINIDAD, COLORADO v. HAMER.* C. A. 10th Cir. Certiorari denied. Reported below: 924 F. 3d 1093.

No. 19–285. *BUTLER v. BOARD OF COUNTY COMMISSIONERS FOR SAN MIGUEL COUNTY ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 920 F. 3d 651.

No. 19–286. *CRANSTON POLICE RETIREES ACTION COMMITTEE v. CITY OF CRANSTON, RHODE ISLAND.* Sup. Ct. R. I. Certiorari denied. Reported below: 208 A. 3d 557.

No. 19–287. *MEDINA v. BARR, ATTORNEY GENERAL.* C. A. D. C. Cir. Certiorari denied. Reported below: 913 F. 3d 152.

No. 19–291. *BLOCK v. WASHINGTON STATE BAR ASSN. ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 729.

No. 19–293. *TKC AEROSPACE INC. v. MUHS.* C. A. 4th Cir. Certiorari denied. Reported below: 923 F. 3d 377.

No. 19–304. *RANGER AMERICAN OF THE V. I., INC., ET AL. v. BALBONI.* Sup. Ct. V. I. Certiorari denied. Reported below: 70 V. I. 1048.

No. 19–406. *TOUMA v. GENERAL COUNSEL OF THE REGENTS OF THE UNIVERSITY OF CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied.

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No. 19–417. *EMW WOMEN’S SURGICAL CENTER, P. S. C., ET AL. v. MEIER*. C. A. 6th Cir. Certiorari denied. Reported below: 920 F. 3d 421.

No. 19–436. *T. R. C. v. WISCONSIN*. Ct. App. Wis. Certiorari denied. Reported below: 2019 WI App 26, 387 Wis. 2d 686, 928 N. W. 2d 809.

No. 19–439. *CTIA–THE WIRELESS ASSN. v. CITY OF BERKELEY, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 928 F. 3d 832.

No. 19–448. *LOURDE v. DOE*. Sup. Jud. Ct. Me. Certiorari denied. Reported below: 2019 ME 109, 211 A. 3d 1153.

No. 19–451. *ARNOLD v. MCCORD, COMMISSIONER, TENNESSEE DEPARTMENT OF LABOR AND WORKFORCE DEVELOPMENT*. C. A. 6th Cir. Certiorari denied.

No. 19–452. *CLARK v. CLARK*. C. A. 8th Cir. Certiorari denied. Reported below: 926 F. 3d 972.

No. 19–457. *XIA BI ET AL. v. MCAULIFFE ET AL.* C. A. 4th Cir. Certiorari denied.

No. 19–458. *SCHICKEL ET AL. v. TROUTMAN ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 925 F. 3d 858.

No. 19–459. *TEXAS BRINE Co., LLC v. FLORIDA GAS TRANSMISSION Co., LLC; TEXAS BRINE Co., LLC v. PONTCHARTRAIN NATURAL GAS SYSTEM ET AL.; TEXAS BRINE Co., LLC v. CROSSTEX ENERGY SERVICES, LP, ET AL.; TEXAS BRINE Co., LLC v. FLORIDA GAS TRANSMISSION Co., LLC; and TEXAS BRINE Co., LLC v. FLORIDA GAS TRANSMISSION Co., LLC*. Ct. App. La., 1st Cir. Certiorari denied.

No. 19–460. *USENKO, DERIVATIVELY ON BEHALF OF THE SUNEDISON SEMICONDUCTOR LTD. RETIREMENT SAVINGS PLAN v. MEMC LLC ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 926 F. 3d 468.

No. 19–463. *WILBUR-ELLIS Co. LLC v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF MISSOURI ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–467. *PAVEL v. UNIVERSITY OF OREGON ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 1022.

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No. 19–468. *FRYE v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 137.

No. 19–474. *RESPECT WASHINGTON v. GLOBAL NEIGHBORHOOD ET AL.* Ct. App. Wash. Certiorari denied. Reported below: 7 Wash. App. 2d 354, 434 P. 3d 1024.

No. 19–478. *SOWE v. PALL CORP.* C. A. 2d Cir. Certiorari denied. Reported below: 778 Fed. Appx. 20.

No. 19–482. *ASAP COPY AND PRINT ET AL. v. CANON SOLUTIONS AMERICA, INC.* Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 19–485. *PEREZ ET AL. v. CITY OF SWEETWATER, FLORIDA*. C. A. 11th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 967.

No. 19–492. *ADAME-HERNANDEZ v. BARR, ATTORNEY GENERAL*. C. A. 8th Cir. Certiorari denied. Reported below: 929 F. 3d 1020.

No. 19–501. *RUTLAND v. WARDEN, SMITH STATE PRISON*. C. A. 11th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 581.

No. 19–530. *SCHLOSSER v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 749 Fed. Appx. 145.

No. 19–533. *RIVER BIRCH, INC., ET AL. v. WASTE MANAGEMENT OF LOUISIANA, L. L. C.* C. A. 5th Cir. Certiorari denied. Reported below: 920 F. 3d 958.

No. 19–536. *BOCILLA ISLAND SEAPORT, INC., FKA HIGHPOINT TOWER TECHNOLOGY, INC. v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 11th Cir. Certiorari denied. Reported below: 931 F. 3d 1050.

No. 19–538. *HEE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–571. *INTEL CORP. ET AL. v. CONTINENTAL CIRCUITS LLC*. C. A. Fed. Cir. Certiorari denied. Reported below: 915 F. 3d 788.

No. 19–576. *INTERIOR GLASS SYSTEMS, INC. v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 927 F. 3d 1081.